

Lalji Tiwari v. State of U.P.

Allahabad High Court · Division Bench · 17 November 2017 · Writ-C No. 54671 of 2017 · **Disposed; restore on Rs. 25,000 deposit; bill to Clause 6.5**

HEADNOTE

On disconnection for non-payment despite a part-deposit, with a bill-correction request pending, the Court granted liberty to invoke Clause 6.5 of the Electricity Supply Code, 2005 for rectification of the bill and directed restoration of supply on deposit of Rs. 25,000 within a week, the balance to follow the corrected bill.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected on 17 October 2017 for non-payment of bills. He had deposited Rs. 50,000 against a demand of Rs. 1,42,028 on 9 September 2017, yet supply was still cut. He had applied for correction of the bill and offered a further deposit to obtain restoration. Counsel for the distribution licensee submitted that the petitioner could invoke Clause 6.5 of the Electricity Supply Code, 2005 for bill correction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correction and restoration pending Clause 6.5

HOLDING

The writ was disposed of with liberty to invoke Clause 6.5 of the Electricity Supply Code, 2005 for rectification of the bill. If the petitioner deposits Rs. 25,000 within one week, the electricity connection shall be restored; payment of the balance shall depend on the bill as corrected in the Clause 6.5 proceedings. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On disconnection for non-payment despite a part-deposit, with a bill-correction request pending, the Court granted liberty to invoke Clause 6.5 of the Electricity Supply Code, 2005 for rectification of the bill and directed restoration of supply on deposit of Rs.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL OF RS. 1,42,028

Left to Clause 6.5; the balance payable depends on the corrected bill. ¶ 1